Fort Bend County District Court

Cause No. 2025-CV-0039

Katherine Russo, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-11-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses. First, the collision was caused in whole or in part by the negligence of Plaintiff, and any recovery must be barred or reduced under Chapter 33 of the Texas Civil Practice and Remedies Code. Second, Plaintiff failed to exercise ordinary care to mitigate damages, including by delaying necessary medical treatment, and recovery must be reduced accordingly. Third, the injuries and damages claimed were not proximately caused by the collision at issue, because the low-speed impact could not have produced the claimed conditions, which were pre-existing or resulted from unrelated causes.

Defendant reserves the right to amend this Answer as discovery proceeds.